

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxxvi.]
Order Confirmation (Chesterfield Extension) Act, 1920.



CHAPTER cxxvi.

An Act to confirm a Provisional Order of the Minister of Health relating to Chesterfield. [9th August 1920.] A.D. 1920.

WHEREAS the Minister of Health has made the Provisional Order set forth in the schedule hereto under the provisions of the Local Government Act 1888:

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as altered and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Chesterfield Extension) Act 1920. Short title.

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SCHEDULE.

BOROUGH OF CHESTERFIELD.

*Chesterfield Provisional Order made in pursuance of Sections 54 and 59 of
Order. the Local Government Act 1888.*

To the Mayor Aldermen and Burgesses of the Borough of
Chesterfield;—

To the Justices of the Peace for the said Borough;—

To the Justices of the Peace for the County of Derby in Quarter
Sessions assembled;—

To the County Council of Derby;—

To the Urban District Council of Brampton and Walton;—

To the Urban District Council of Whittington and Newbold;—

To the Rural District Council of Chesterfield;—

To the Guardians of the Poor of the Chesterfield Union;—

To the Parish Councils of Brimington and Hasland;—

To the Overseers of the Poor of the Parishes of Brampton and
Whittington and of the Townships of Brimington Chesterfield
Hasland Newbold and Dunston Tapton and Walton;—

To the Chairman of the Parish Meeting of the Township of
Tapton;—

To the Chesterfield Gas and Water Board;—

To the Chesterfield Joint Hospital Committee;—

To the North Derbyshire Hospital Committee;—

To the Joint Committee appointed by the Council of the Borough
of Chesterfield and the Parish Meeting of the Township of
Tapton and exercising the powers and duties of the authority
under the Burial Acts 1852 to 1906;—

And to all others whom it may concern.

51 & 52 Vict. c. 41. WHEREAS by Section 54 of the Local Government Act 1888 the
Minister of Health is empowered to make a Provisional Order for
altering the boundary of any Borough and by such Order to divide or
alter any electoral division;

And whereas the Borough of Chesterfield in the County of Derby
is a Borough within the meaning of the Local Government Act 1888
and the inhabitants are a body corporate by the name of the Mayor
Aldermen and Burgesses of the Borough of Chesterfield and act by the

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Council of the said Borough which now consists of the Mayor (who is also a Councillor) eight Aldermen and twenty-three other Councillors and the said Borough is for the purposes of the election of Councillors divided into four wards termed respectively the North Ward the South Ward the Central Ward and the West Ward;

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And whereas the said Borough is co-extensive with the Township of Chesterfield and is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council are the Urban District Council;

And whereas the said Borough has a separate commission of the peace and police force;

And whereas in pursuance of the Education Act 1902 the Council of the said Borough are the local education authority for the purposes of Part III. of that Act and the County Council of Derby are the local education authority for the other purposes of that Act;

2 Edw. 7.
c. 42.

And whereas the unrepealed provisions of the Local Acts specified in Part I. of the First Schedule to this Order and of the Confirmation Acts specified in Part II. of the said Schedule so far as the last-mentioned Acts relate to the Orders specified in that Schedule are in force in the said Borough;

And whereas the provisions of—

- (a) The Infectious Disease (Prevention) Act 1890;
- (b) The Public Health Acts Amendment Act 1890;
- (c) The Baths and Washhouses Acts 1846 to 1899;
- (d) The Private Street Works Act 1892; and
- (e) The Public Libraries Acts 1892 to 1919;

53 & 54 Vict.
c. 34.
53 & 54 Vict.
c. 59.
9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.
41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.
59 & 60 Vict. c. 59.
62 & 63 Vict. c. 29.
55 & 56 Vict.
c. 57.
55 & 56 Vict. c. 53.
56 Vict. c. 11.
1 Edw. 7. c. 19.
9 & 10 Geo. 5. c. 93.

are in force in the said Borough;

And whereas by virtue of subsection (2) of Section 53 of the Local Government Act 1894 the powers and duties of the authority under the Burial Acts 1852 to 1906 for an area comprised in the Townships of Chesterfield and Tapton were transferred to the Council of the said Borough and the Parish Meeting of Tapton and the said powers and duties are exercised by a Joint Committee appointed in pursuance of the said section;

15 & 16 Vict.
c. 85.
6 Edw. 7. c. 44.

And whereas the Urban District of Brampton and Walton in the County of Derby immediately adjoins the said Borough and comprises the Parish of Brampton and the Township of Walton and is subject to the jurisdiction of the Urban District Council of Brampton and Walton;

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And whereas the provisions of Parts II. III. and V. of the Public Health Acts Amendment Act 1890 are in force in the Urban District of Brampton and Walton;

And whereas the Urban District of Whittington and Newbold in the County of Derby immediately adjoins the said Borough and comprises the Parish of Whittington and the Township of Newbold and Dunston and is subject to the jurisdiction of the Urban District Council of Whittington and Newbold;

And whereas the provisions of—

(a) The Infectious Disease (Prevention) Act 1890;

(b) Parts II. and III. of the Public Health Acts Amendment Act 1890; and

(c) The Private Street Works Act 1892;

are in force in the Urban District of Whittington and Newbold;

And whereas the Townships of Hasland and Tapton in the County of Derby immediately adjoin the said Borough and the Township of Brimington in the said County immediately adjoins the Township of Tapton and all those townships are contributory places in the Rural District of Chesterfield and are subject to the jurisdiction of the Rural District Council of Chesterfield;

And whereas the provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts are in force in the said Rural District;

3 & 4 Will. IV.
c. 90.

And whereas the Lighting and Watching Act 1833 has been adopted in the said Township of Hasland;

And whereas the Parishes of Brampton and Whittington and the Townships of Brimington Chesterfield Hasland Newbold and Dunston Tapton and Walton are included in the Chesterfield Union and the Board of Guardians of that Union consists of sixty-two elective guardians;

And whereas the Township of Chesterfield is for the purpose of the election of guardians divided into four wards which are respectively co-extensive with and bear the same names as the municipal wards and two guardians are elected for each of those wards and one guardian is elected for the Parish of Brampton three guardians are elected for the Parish of Whittington two guardians are elected for the Township of Newbold and Dunston and one guardian is elected for the Township of Walton and the Rural District Councillor elected for the Township of Tapton the two Rural District Councillors elected for the Township of Brimington and the two Rural District Councillors

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elected for the Township of Hasland are the representatives of those parishes or townships respectively on the Board of Guardians of the Chesterfield Union;

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And whereas in pursuance of the Education Act 1902 the said Parishes of Brampton and Whittington and the said Townships of Brimington Hasland Newbold and Dunston Tapton and Walton form part of the area of the County Council of Derby as the local education authority;

And whereas the said Townships of Brimington and Hasland are rural parishes within the meaning of the Local Government Act 1894 for which Parish Councils have been established;

And whereas by virtue of orders made by the County Council of Derby in pursuance of the Isolation Hospitals Act 1893 and termed the North Derbyshire Hospital (County of Derby) Order 1896 and the North Derbyshire Hospital (County of Derby) Order 1896 Amendment Order 1900 and of the Chesterfield (Extension) Order 1910 the Chesterfield Rural District is with certain other urban and rural districts comprised in the North Derbyshire Joint Hospital District;

56 & 57 Vict.
c. 68.

And whereas by virtue of orders made by the County Council of Derby in pursuance of the Isolation Hospitals Act 1893 and termed the Borough of Chesterfield Hospital (County of Derby) Order 1898 and the Chesterfield Joint Hospital (County of Derby) Order 1900 and of the Chesterfield (Extension) Order 1910 the said Borough and the said Urban Districts of Brampton and Walton and Whittington and Newbold are comprised in the Chesterfield Joint Hospital District;

And whereas by virtue of an Order of the Local Government Board dated the Fourteenth day of August One thousand eight hundred and eighty-eight as altered by certain other Orders and Provisional Orders of the Local Government Board the number of County Councillors for the County of Derby is sixty-five of which number four are apportioned to the said Borough which now comprises four electoral divisions termed respectively the Chesterfield No. 1 Electoral Division the Chesterfield No. 2 Electoral Division the Chesterfield No. 3 Electoral Division and the Chesterfield No. 4 Electoral Division and the Parish of Brampton and the Townships of Hasland and Walton together constitute the Brampton Walton and Hasland Electoral Division the Parish of Whittington constitutes the Whittington Electoral Division the Townships of Brimington and Tapton are included in the Brimington Electoral Division and the Township of Newbold and Dunston is included in the Newbold and Dunston and Barlow Electoral Division of the said County;

And whereas in pursuance of the Chesterfield Gas and Water Board Act 1895 the Chesterfield Gas and Water Board (which now

58 & 59 Vict.
c. cxlvii.

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A.D. 1920. consists of members elected by the Council of the existing Borough
Chesterfield and the Whittington and Newbold Council) was incorporated for the
Order. purposes of the supply of gas and water within certain limits which
include the said Borough and the whole of the areas by this Order
added to that Borough and the unrepealed provisions of the Local
Acts specified in Part I. of the Second Schedule to this Order and
of the Confirmation Act specified in Part II. of that Schedule so far as
the last-mentioned Act relates to the Order specified in that Schedule
relate to the Gas and Water Board:

51 & 52 Vict. Now therefore the Minister of Health in pursuance of the powers
c. 41. given to him by Sections 54 and 59 of the Local Government Act
1888 and by any other enactment in that behalf hereby orders that
from and after the date of the Act of Parliament confirming this Order
the following provisions shall take effect:—

Definitions. Art. I. In this Order—

- (1) The expression “the commencement of this Order” means
the Ninth day of November One thousand nine hundred
and twenty;
- (2) The expression “the existing Borough” means the Borough
of Chesterfield as it existed immediately prior to the
commencement of this Order;
- (3) The expression “the Borough” means the existing Borough
as extended by this Order;
- (4) The expression “the Minister” means the Minister of Health;
- (5) The expression “the Corporation” means as the context
requires the Mayor Aldermen and Burgesses of the existing
Borough or of the Borough acting by the Council;
- (6) The expressions “the County” and “the County Council”
mean respectively the Administrative County of Derby
and the County Council of that County;
- (7) The expressions “the Brampton and Walton District” and
“the Brampton and Walton Council” mean respectively
the Urban District of Brampton and Walton and the
Urban District Council of that District the expressions
“the Whittington and Newbold District” and “the
Whittington and Newbold Council” mean respectively
the Urban District of Whittington and Newbold and the
Urban District Council of that District and the expressions
“the Urban Districts” and “the Urban Councils” mean
respectively the Brampton and Walton District and the
Whittington and Newbold District and the Brampton and
Walton Council and the Whittington and Newbold
Council;

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- (8) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Chesterfield and the Rural District Council of that District; A.D. 1920.
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- (9) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Chesterfield as extended 1920" and sealed with the official seal of the Minister;
- (10) The expression "the Ward maps" means the two maps each marked "Map of the Wards of the Borough of Chesterfield as extended 1920" and sealed with the official seal of the Minister;
- (11) The expression "the added areas" means the parts of the Brampton and Walton District of the Whittington and Newbold District and of the Rural District added to the existing Borough by this Order;
- (12) The expression "the added parts of Brampton and Walton" means the parts of the Brampton and Walton District which are coloured blue on the Borough maps the expression "the added part of Whittington and Newbold" means the part of the Whittington and Newbold District which is coloured green on the Borough maps the expressions "the added part of Brimington" and "the added part of Hasland" mean respectively the parts of those Townships which are respectively coloured yellow and purple on the Borough maps and the expression "the excluded part of Whittington and Newbold" means the part of the Whittington and Newbold District which is coloured red on the Borough maps;
- (13) The expressions "the existing Parish of Brampton" "the existing Parish of Whittington" "the existing Township of Brimington" "the existing Township of Chesterfield" "the existing Township of Hasland" "the existing Township of Newbold and Dunston" "the existing Township of Tapton" and "the existing Township of Walton" mean in each case the Parish or Township as it existed immediately prior to the commencement of this Order and the expressions "the Parish of Brampton" "the Township of Brimington" "the Township of Chesterfield" "the Township of Hasland" and "the Township of Walton" mean in each case the Parish or Township as altered by this Order;
- (14) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;

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- (15) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;
- (16) The expression "the Act of 1907" means the Public Health Acts Amendment Act 1907;
- (17) The expression "the Burial Acts" means the Burial Acts 1852 to 1906;
- (18) The expressions "the Joint Burial Committee" and "the Joint Burial area" mean respectively the joint committee appointed by the Corporation and the Parish Meeting of the existing Township of Tapton under subsection (2) of Section 53 of the Act of 1894 for the purposes of the Burial Acts and the area within which the Joint Burial Committee exercise the powers and duties of the authority under the Burial Acts;
- (19) The expression "the Gas and Water Board" means the Chesterfield Gas and Water Board and the expression "the Gas and Water Board Acts" means the Local Acts specified in Part I. of the Second Schedule to this Order as altered by the Provisional Order confirmed by the Confirmation Act specified in Part II. of that Schedule;
- (20) The expression "the Whittington gas undertaking" means the undertaking of the Whittington Gas Company Limited including their lands works mains plant and other property;
- (21) The expression "the Local Act of 1904" means the Chesterfield Corporation Tramways and Improvement Act 1904 and the expression "the Local Act of 1914" means the Chesterfield Corporation Act 1914;
- (22) The expression "the Confirming Act of 1892" means the Local Government Board's Provisional Order Confirmation (No. 14) Act 1892 and the expression "the Order of 1892" means the Borough of Chesterfield Order 1892;
- (23) The expression "the Confirming Act of 1910" means the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1910 and the expression "the Order of 1910" means the Chesterfield (Extension) Order 1910.

Commence-
ment of
Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and twenty:

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Provided that for the purposes of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year One thousand nine hundred and twenty and of the revision of the basis or standard of the county rate of the County this Order shall operate from the date of the Act of Parliament confirming this Order.

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Date of
operation
of Order for
elections &c.

Art. III.—(1) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so as to include in addition to that area the added parts of Brampton and Walton the added part of Whittington and Newbold and so much of the Rural District as comprises the Township of Tapton (the area whereof is coloured brown on the Borough maps) the added part of Brimington and the added part of Hasland.

Extension of
Borough.

(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

(3) The excluded part of Whittington and Newbold shall be added to and form part of the Urban District of Brampton and Walton.

Addition of
excluded part of
Whittington
and Newbold to
Brampton and
Walton.

Art. IV.—(1) One of the Borough maps and one of the Ward maps shall be deposited in the office of the Minister and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order. Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council to the Clerk to the Brampton and Walton Council to the Clerk to the Whittington and Newbold Council to the Clerk to the Rural Council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Postmaster-General to the Board of Trade to the Minister of Transport to the Minister of Agriculture and Fisheries and to the Electricity Commissioners and copies of the Ward map so deposited and certified in like manner shall be sent within the said period to the Registrar-General and to the Minister of Agriculture and Fisheries.

Deposit of
maps.

(2) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as primâ facie evidence of the contents of the map so far as it relates to the boundaries of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by

Copies of
map to be
evidence.

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A.D. 1920. the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the borough fund.
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Powers and duties of justices &c. extended.

Art. V. The powers and duties of the justices of the peace appointed for the existing Borough of the clerk to those justices and of the police constables and other peace officers of the existing Borough shall extend to and apply throughout the Borough:

Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the added areas may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Application of County and Borough Councils (Qualification) Act 1914. 4 & 5 Geo. 5. c. 21.

Art. VI. For the purposes of the application to the Borough of the provisions of the County and Borough Councils (Qualification) Act 1914 the added areas shall be deemed to have always formed part of the Borough.

Number of Councillors and Aldermen.

Art. VII. The number of Councillors of the Borough shall be increased from twenty-four to thirty-six and the number of Aldermen of the Borough shall be increased from eight to twelve.

Art. VIII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

Division into wards.

(1) For the purposes of the election of Councillors the Borough shall be divided into twelve wards which shall be named respectively the Hasland Ward the West Ward the Rother Ward the Saint Leonard's Ward the Holme Brook Ward the Central Ward the Trinity Ward the Saint Helen's Ward the Moor Ward the Newbold Ward the Old Whittington Ward and the New Whittington Ward:

Boundaries of wards.

(2) Each of the said wards shall comprise that portion of the Borough which is indicated by a separate colour and distinguished by the name of the ward on the Ward maps:

(3) Three Councillors shall be assigned to each of the said wards.

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Art. IX. For the purposes of the election of a town council for the Borough in pursuance of the Municipal Corporations Acts in the month of November One thousand nine hundred and twenty the following provisions shall apply:—

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Provisions
for election of
Councillors
and Alder-
men in 1920.

(a) The town clerk and the Mayor of the existing Borough or such other persons as the Minister shall appoint shall perform the duties devolving upon the town clerk and Mayor respectively under the Municipal Corporations Acts and the Mayor of the existing Borough shall be the returning officer at the election for all the wards. Provided that the Mayor of the existing Borough may appoint some other person to act as returning officer at the election for any of the wards:

(b) Thirty-six Councillors of the Borough shall be elected on the First day of November One thousand nine hundred and twenty and twelve Aldermen of the Borough shall be elected on the Ninth day of November One thousand nine hundred and twenty:

(c) Notwithstanding anything in the Municipal Corporations Acts to the contrary all the Councillors of the existing Borough who shall be in office on the First day of November One thousand nine hundred and twenty shall go out of office on that date and all the Aldermen of the existing Borough who shall be in office on the Eighth day of November One thousand nine hundred and twenty shall go out of office on that date and all the said Councillors and Aldermen shall be eligible for election as Councillors of the Borough on the First day of November One thousand nine hundred and twenty.

Art. X.—(1) The Councillors elected for the Borough in the year One thousand nine hundred and twenty in pursuance of this Order shall retire as follows:—

Retirement
of Councillors
and Alder-
men elected
in 1920.

(a) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and twenty-one:

(b) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and twenty-three:

(c) The other Councillor for each ward on the First day of November One thousand nine hundred and twenty-two.

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(2) The Aldermen elected for the Borough in the year One thousand nine hundred and twenty in pursuance of this Order shall retire as follows:—

(a) The six Aldermen elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and twenty-three:

(b) The other six Aldermen on the Ninth day of November One thousand nine hundred and twenty-six:

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall on the Ninth day of November One thousand nine hundred and twenty or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

Local Acts
and Orders.

Art. XI. Subject to the provisions of this Order the unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the First Schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that Schedule and of any other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing Borough or the Corporation as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof:

1 Edw. 7.
c. cxxi.

Provided that nothing in this Article or in the Local Act of 1904 or in the Local Act of 1914 as extended and applied to the Borough by this Article shall prejudicially affect the undertaking or powers of the Derbyshire and Nottinghamshire Electric Power Company under the Derbyshire and Nottinghamshire Electric Power Act 1901 in relation to any part of the added part of Brimington and that in relation to any part of the added part of Brimington that Act shall continue to apply as if no consent of a distributing authority were required in any case to enable the Company to supply energy in any part of the added part of Brimington.

Repeal and
alteration of
Gas and

Art. XII. Subject to the provisions of this Order the unrepealed provisions of the Gas and Water Board Acts and the Derwent Valley

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Water Act 1899 shall be repealed and altered as follows that is to say :—

- (1) Sections 5 6 7 8 9 10 11 12 13 14 15 17 18 19 21 24 25 27 29 30 31 32 33 53 58 and 59 of the Chesterfield Gas and Water Board Act 1895 shall be repealed :

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Order.*

Water Board
Acts.

- (2) References to the Corporation shall be substituted for references to the Gas and Water Board throughout the unrepealed provisions of the Gas and Water Board Acts and of Sections 91 and 178 of the Derwent Valley Water Act 1899 :

62 & 63 Vict.
c. cclxix.

- (3)—(a) The Corporation may with the sanction of the Minister purchase the Whittington gas undertaking and that undertaking shall after the purchase be deemed for all purposes to form part of the gas undertaking of the Corporation under the Gas and Water Board Acts ;

Purchase of
Whittington
gas under-
taking.

(b) The Corporation after the purchase may notwithstanding anything in the unrepealed provisions of the Gas and Water Board Acts as altered by this Order hold and use for the manufacture and storage of gas and of residual products the lands at present used by the Whittington Gas Company Limited for those purposes ;

(c) The purchase of the Whittington gas undertaking shall be a purpose of the Chesterfield Gas and Water Board Act 1911 for which the Corporation may with the sanction of the Minister borrow money under the provisions of paragraph (c) of subsection (1) of Section 39 of that Act ;

(d) For the protection of the Midland Railway Company the provisions of Section 35 of the Chesterfield Gas and Water Board Act 1911 shall after the purchase by the Corporation of the Whittington gas undertaking apply to any works for the supply of gas which shall be executed by the Corporation in the areas to the existing Parish of Whittington and the existing Township of Brimington and which may cross over or under or otherwise affect the railway or any part of the railway works of the Midland Railway Company :

For protec-
tion of Mid-
land Railway.

- (4) The Chesterfield Gas and Water Board Act 1895 shall be further altered as follows that is to say :—

(a) By the omission from Section 47 of the words “ and
 “ for the purposes of such issue the board shall be
 “ deemed a local authority under that Act and the
 “ revenue of their undertaking and any sums receivable
 “ by them from the constituent authorities shall be deemed
 “ to be the local rate as defined by the said Act” ;

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(b) By the omission from subsection (2) of Section 48 of that Act of all the words following the words "varied by this Act";

(c) By the substitution in Section 51 of that Act of the words "town clerk" for the words "clerk of the board";

(d) From and after the date of the purchase by the Corporation of the Whittington gas undertaking as provided by subdivision (3) of this Article by the omission from Section 4 of that Act of all the words following the word "parishes."

Alteration
of financial
provisions of
Gas and
Water Board
Acts.

Art. XIII. The Gas and Water Board Acts shall be further altered so that the following provisions shall have effect that is to say:—

(1) All moneys borrowed by the Corporation after the commencement of this Order in pursuance of powers of borrowing conferred by the Gas and Water Board Acts as hereby altered shall be borrowed upon the security of the revenue of the gas and water undertakings and of the district fund and general district rate of the Borough:

(2) If the amount standing to the credit of the revenue account of the water undertaking or the revenue account of the gas undertaking of the Corporation shall at any time be insufficient for the payment of the charges thereon the deficiency shall be made up out of the district fund and general district rate of the Borough by carrying an adequate sum from the district fund to the credit of the water revenue account or the gas revenue account as the case may be and the Corporation from time to time in preparing the estimates of the amount required in their judgment to be raised by means of a general district rate for the purposes of the Borough may include therein such sums (if any) as in the judgment of the Corporation are necessary to be provided in aid of the deficiency from time to time arising as aforesaid in the said accounts and shall collect the same as part of such general district rate:

(3) In any year in which the Corporation make good out of the district fund any deficiency in the water revenue account under the provisions of subdivision (2) of this Article the Corporation may provided they are charging the maximum rates for water supplied for domestic purposes within the Borough demand and recover from consumers of water in the Township of Brimington and the Township of Hasland rates and charges exceeding the rates and charges otherwise for the time being payable by such consumers under the Gas and Water Board Acts The additional rates and charges so to be demanded and recovered shall be of such amount as will in the judgment of the Corporation produce

[10 & 11 Geo. 5.] *Ministry of Health Provisional* [Ch. cxxvi.]
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a sum equivalent to the share of the deficiency that would have been payable by the said townships had they been made liable to contribute to the making good of the deficiency by means of contributions out of rates leviable in those townships and the deficiency had been apportioned between the Borough and the said townships in proportion to the respective gross estimated rentals of the Borough and townships such gross estimated rental being ascertained according to the valuation lists for the time being in force.

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*Chesterfield
Order.*

Art. XIV. Nothing in this Order shall prejudicially affect the rights of the Corporation to charge the rates or rents specified in the proviso to Section 25 of the Chesterfield Waterworks and Gaslight Company's Extension Act 1865 for water supplied by them or to charge the price specified in Section 28 of that Act for gas supplied by them and for the purposes of those sections the Borough of Chesterfield shall be deemed to be the Borough as it existed before its extension by the Borough of Chesterfield Order 1892.

Saving for
gas and water
charges.
28 Vict.
c. xxxvi.

Art. XV.—(1) From and after the commencement of this Order the "Chesterfield Gas and Water Board $2\frac{3}{4}$ per cent. Redeemable Stock" created and issued by the Gas and Water Board under Section 52 of the Chesterfield Gas and Water Board Act 1895 and the Stock Regulations 1891 1897 and 1901 or any of those regulations shall be designated by the name of "Chesterfield Corporation (Gas and Water) $2\frac{3}{4}$ per cent. Redeemable Stock" and the said stock shall continue in all respects to be subject to the provisions of the Stock Regulations 1891 1897 and 1901 as fully as if the stock had been created and issued by the Corporation of the Borough and as if the Corporation of the Borough were the local authority within the meaning of those regulations.

Chesterfield
Gas and
Water Board
Stock.

(2) Every stock certificate issued before the commencement of this Order shall have effect as if in that stock certificate the name by which in pursuance of subdivision (1) of this Article the stock will be designated were substituted for the name by which the stock is designated in the stock certificate.

Art. XVI. Subject to the provisions of this Order—

Byelaws &c.

(1) All byelaws orders and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws orders or regulations or list of tolls or table of fees and payments or scale of charges may be altered repealed or revoked:

(2) All byelaws and regulations made by the Urban Councils or by the Rural Council or their predecessors and in force

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Order.*

immediately before the commencement of this Order in any part of the added areas or of the excluded part of Whittington and Newbold as the case may be and all byelaws made by the County Council under Section 16 of the Act of 1888 and in force immediately before the commencement of this Order in any part of the added areas and all orders made by the County Council which are in force therein (so far as the same or similar orders have been or could have been made by the Corporation) shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Council of the District in which the part is situated or have been sent to the surveyor or clerk to that Council one month at least before that date and shall not have been disapproved by that Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation or by the Brampton and Walton Council as the case may be and as if the Corporation and the Borough or the Brampton and Walton Council and the District of that Council as the case may be were referred to therein instead of the Council of the District in which the part is situated and that District. Provided that any proceedings which if this Order had not been made might have been taken by the County Council either of the Urban Councils or the Rural Council for any offence committed before the commencement of this Order against any byelaws and regulations made by that Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas or of the excluded part of Whittington and Newbold as the case may be may be taken by the Corporation or by the Brampton and Walton Council as the case may be as if those byelaws and regulations had remained in force and the Corporation or the Brampton and Walton Council as the case may be had been substituted therein for that Council.

*Alteration
of Hospital
Districts.*

Art. XVII.—(1) The added part of Brimington the added part of Hasland and the Township of Tapton shall respectively cease to form part of the North Derbyshire Joint Hospital District and shall form part of and be included in the Chesterfield Joint Hospital District.

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(2) The North Derbyshire Hospital (County of Derby) Order 1896 as altered by the North Derbyshire Hospital (County of Derby) Order 1896 Amendment Order 1900 and by the Order of 1910 shall have effect as if for the purposes of those Orders the Rural District as diminished by this Order and the Rural Council were the Rural District and the Rural District Council to which those Orders relate.

A.D. 1920.

*Chesterfield
Order.*

(3) The Borough of Chesterfield Hospital (County of Derby) Order 1898 as altered by the Chesterfield Joint Hospital (County of Derby) Order 1900 and by the Order of 1910 shall have effect as if for the purposes of those Orders the Borough as extended by this Order and the Corporation thereof were the existing Borough and the Corporation thereof and as if the Brampton and Walton District as altered by this Order and the Brampton and Walton Council were the Brampton and Walton District and the Brampton and Walton Council to which those Orders relate.

(4) The number of members of the Chesterfield Joint Hospital Committee to be elected by the Corporation shall be eight and the persons who at the commencement of this Order represent the Whittington and Newbold Council upon that Committee shall be deemed to have been elected for and shall represent the Borough upon that Committee until the date on which the members elected to represent the existing Borough would ordinarily retire.

Art. XVIII.—(1) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Town clerk
and other
officers con-
tinued.

(2) The auditors who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the borough auditors until the next ordinary day of election of borough auditors.

Borough
auditors.

Art. XIX.—(1) The provisions of subsection (13) of Section 118 and of Section 119 of the Act of 1888 shall apply to all persons who at the commencement of this Order hold office as officers or servants of the Gas and Water Board or of the Whittington and Newbold Council with such modifications as are necessary to make those provisions applicable to the said officers and servants and to the Corporation.

Compensa-
tion to exist-
ing officers.

(2) Every clerk to justices and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by

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diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation and the compensation payable to any person who becomes entitled to compensation in pursuance of subdivision (1) of this Article regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the Borough and in every other case out of the borough fund and borough rate of the Borough and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(3) For the purposes of subdivision (2) of this Article any clerk to justices officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the County Council or the Standing Joint Committee of the County or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

(4) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

Actions &c.
not to abate.

Art. XX.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Gas and Water Board or by or against either of the Urban Councils or the Rural Council in relation exclusively to any part of the added areas or of the excluded part of Whittington and Newbold as the case may be shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough or the Brampton and Walton Council as the case may be.

Saving for
contracts &c.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Gas and Water Board or by

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either of the Urban Councils or the Rural Council or their predecessors in relation exclusively to any part of the added areas or of the excluded part of Whittington and Newbold as the case may be shall be of as full force and effect against or in favour of the Corporation of the Borough or the Brampton and Walton Council as the case may be and may be continued and enforced as fully and effectually as if instead of the Gas and Water Board the Council or their predecessors the Corporation or the Brampton and Walton Council as the case may be had done or suffered the same or been a party thereto.

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*Chesterfield
 Order.*

Art. XXI. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

Corporation
 property &c.

Art. XXII. The Whittington and Newbold Council and the Gas and Water Board shall liquidate as far as practicable before the commencement of this Order all current debts and liabilities incurred by them.

Liquidation of
 current debts
 and liabilities
 by Whittington
 and Newbold
 Council &c.

Art. XXIII. Subject to the provisions of this Order—

- (1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Gas and Water Board or to either of the Urban Councils or the Rural Council in relation exclusively to any part of the added areas shall by virtue of this Order be transferred to and vest in and attach to the Corporation as Urban District Council and any property and liabilities vested in or attached to any of those Councils in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888:

Property &c.
 of Urban
 and Rural
 Councils.

- (2) The Gas and Water Board and the Whittington and Newbold Council shall at the commencement of this Order be abolished and cease to exist and the Brampton and Walton Council and the Rural Council shall cease to exercise any powers or have any duties within any part of the added areas:

Abolition of
 Gas and
 Water Board
 and Whit-
 tington and
 Newbold
 Council &c.

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*Chesterfield
 Order.*

Arrears of
 rates &c.

(3)—(a) All arrears of rates made by either of the Urban Councils in respect of hereditaments in any part of the added areas and all other payments which at the commencement of this Order are due or owing to either of the Urban Councils in respect of any part of the added areas may be collected and recovered by the Corporation:

(b) All arrears of rates made by the Whittington and Newbold Council and all other payments which at the commencement of this Order are due or owing to that Council in respect of hereditaments in the excluded part of Whittington and Newbold may be collected and recovered by the Brampton and Walton Council as if this Order had not been made:

(c) All arrears of rates made by any Overseers of the Poor for the purposes of the Public Health Acts or for highway expenses or for the purposes of the Lighting and Watching Act 1833 which at the commencement of this Order are due or owing in respect of hereditaments in the Township of Tapton the added part of Brimington and the added part of Hasland may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied or in the case of rates made in the existing Township of Hasland for the purposes of the Lighting and Watching Act 1833 towards defraying any expenses incurred by the Parish Council of that Township under the last-mentioned Act and the balances if any shall be paid to the Corporation:

(4) Any balances in the hands of the Overseers of the Parish of Brampton or of the Townships of Brimington Hasland Newbold and Dunston and Walton at or immediately before the commencement of this Order and any sum collected after that date by Overseers of the Poor in respect of any rate made before that date and levied upon any rateable hereditament in that parish or any of those townships shall be a matter for adjustment under Section 62 of the Act of 1888:

(5) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by

Adaptation
 of provisions
 as to adjust-
 ment.

[10 & 11 GEO. 5.] *Ministry of Health Provisional [Ch. cxxvi.]
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this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction:

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Order.*

(6) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the abolition or the alteration of the area of any existing parish or township or to the constitution of a new parish or township that section shall have effect—

(a) As if the Overseers of the Parish of Brampton or of the Townships of Brimington Chesterfield Hasland and Walton and the persons who immediately before the commencement of this Order were the Overseers of the Parish of Whittington and of the Townships of Newbold and Dunston and Tapton or if the circumstances of the case so require any persons who may be substituted for those persons by an order of the Minister were within the meaning of the said section as applied by this Order authorities affected by this Order; and

(b) As if the poor rate or any other rate leviable in pursuance of the said section as applied by this Article were substituted for any fund mentioned in the section; and

(c) As if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended that is to say:—

“ (6) If it is necessary for the purpose of giving
“ effect to any agreement or award for an adjust-
“ ment that a separate rate shall be levied in part
“ of a parish only the agreement or award may
“ authorise the making of such a separate rate as if
“ it were a poor rate and as if the part of the
“ parish on which it is to be levied were a whole
“ parish.”

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*Chesterfield
Order.*

“(7) Any capital sum paid for the purposes of any adjustment or in pursuance of any order or award of an arbitrator shall be applied by such person in such manner and for such purpose as the Minister of Health may authorise or direct.”

*Mortgage
debts of
Corpora-
tion &c.*

Art. XXIV.—(1) The liability for repayment of any moneys borrowed by the Gas and Water Board or by the Whittington and Newbold Council or of any moneys borrowed by the Parish Meeting of Tapton for the purposes of the Burial Acts or of so much of any of those moneys as will be owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred and attach to the Corporation.

(2) So much as will at the commencement of this Order be outstanding in respect of the moneys borrowed as aforesaid by the Whittington and Newbold Council together with so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the district fund and general district rate of the existing Borough shall by virtue of this Order be charged upon the district fund and general district rate of the Borough and so much as will be so outstanding in respect of the moneys borrowed as aforesaid by the Gas and Water Board shall by virtue of this Order be charged upon the revenue of the Corporation in respect of the gas and water undertakings and the district fund and general district rate of the Borough.

(3) So much as will at the commencement of this Order be outstanding in respect of the moneys borrowed as aforesaid for the purposes of the Burial Acts together with so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged upon the borough fund and borough rate of the Borough.

(4) All borrowed moneys to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

(5) Nothing in this Order shall prejudice or affect any mortgage or other security which has been granted in respect of any sum borrowed as aforesaid or the powers of any person entitled under any such mortgage or other security to enforce the same as if this Order had not been made and where for any such purpose it is necessary to continue the exercise of a power which would have existed

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but for this Order the power may continue to be exercised as if this Order had not been made and the general district rate of the Borough or the borough rate of the Borough as the case may be shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable or in the case of the loans of the Gas and Water Board in substitution for the moneys received by that Board from the Constituent Authorities if this Order had not been made.

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Order.*

Art. XXV.—(1) The provisions of the Baths and Washhouses Acts 1846 to 1899 the Public Health Acts Amendment Act 1890 the Infectious Disease (Prevention) Act 1890 the Private Street Works Act 1892 and the Public Libraries Acts 1892 to 1919 shall be in force in and apply to the Borough as if the same had been adopted therein.

*Adoptive
Acts and
powers under
the Public
Health Acts
Amendment
Act 1907.*

(2) The provisions of the Infectious Disease (Prevention) Act 1890 and of the Private Street Works Act 1892 shall cease to be in force in and apply to any part of the excluded part of Whittington and Newbold.

(3) Subject to the provisions of any order which the Minister or the Secretary of State may make after the commencement of this Order the provisions of any order made by the Local Government Board or by the Secretary of State before the commencement of this Order and declaring to be in force in the existing Borough or in the existing Brampton and Walton District any Parts or Sections of the Act of 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the existing Borough or the existing Brampton and Walton District extended and applied to the Borough or the Brampton and Walton District as hereby altered as the case may be and as if the said Parts and Sections were accordingly declared to be in force in the Borough or the said altered District.

(4) The provisions of any order made by the Local Government Board or by the Secretary of State before the commencement of this Order whereby any Parts or Sections of the Act of 1907 are in force in any part of the added areas or the excluded part of Whittington and Newbold shall cease to apply to those areas or excluded part and subject to the provisions of this Article the Parts and Sections declared by any such order to be in force shall cease to be in force in any part of the added areas or the said excluded part.

(5) Nothing in subdivisions (2) and (4) of this Article shall—

(a) affect the operation prior to the commencement of this Order of any such provisions or anything duly done or suffered thereunder; or

(b) affect any right privilege obligation or liability acquired accrued or incurred under any such provisions; or

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Order.

(c) affect any penalty forfeiture or punishment incurred in respect of any offence committed against any such provisions; or

(d) affect any investigation legal proceeding or remedy in respect of any such right privilege obligation liability penalty forfeiture or punishment as aforesaid.

Powers under
Section 33
and Sec-
tion 34 of
Act of 1894.

Art. XXVI. Subject to the provisions of any Order which the Minister may make after the commencement of this Order—

(1) The provisions of any order made by the Local Government Board before the commencement of this Order and conferring upon the Council of the existing Borough or upon the Brampton and Walton Council any of the matters mentioned in Section 33 or in Section 34 of the Act of 1894 and in that order shall be deemed to have effect as if any reference to the existing Township of Chesterfield or to the existing Parish of Brampton as the case may be extended and applied to the Township of Chesterfield or to the Parish of Brampton as the case may be:

(2) The order made by the Local Government Board under the said Section 33 and dated the twenty-first day of October One thousand eight hundred and ninety-six whereby the powers duties and liabilities of the Overseers of the Parish of Brampton and of the Overseers of the Township of Walton with respect to appeals or objections by the Overseers in respect of the valuation lists or appeals in respect of the poor rate or county rate or the basis of the county rate were vested in or attached to the Brampton and Walton Council shall cease to apply and have effect within the added parts of Brampton and Walton.

Orders under
Shops Acts.

Art. XXVII. Any order made under the Shops Act 1912 or any subsequent Act providing for the closing of shops and in force immediately before the commencement of this Order in any area affected by this Order shall subject to the provisions of such Acts remain in force and apply to the area to which it applied immediately before the commencement of this Order.

Art. XXVIII. For the purposes and subject to the provisions of the Education Acts 1870 to 1919—

Transfer of
public ele-
mentary
schools &c. to
Corporation.

(1) All public elementary schools (including the sites and school-houses) provided by the local education authority and any other land acquired and held by the local education authority for purposes of public elementary education and situate in the added areas and the furniture fittings books and apparatus belonging to the County Council of any public

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elementary school in the added areas shall by virtue of this Order be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority and all contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of any of the public elementary schools in the added areas or of the said land furniture fittings books or apparatus or with respect to the officers teachers and servants of any of the said public elementary schools in the added areas shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority:

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision:

- (2) Subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) and any other land furniture fittings or apparatus transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the borough fund and the borough rate of the Borough and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable:

- (3) Any byelaws in force in the existing Borough immediately before the commencement of this Order shall from and after that date apply to the Borough until revoked or altered and from and after that date any byelaws then in force in any part of the added areas shall cease to be in force:

- (4) Any managers of public elementary schools in the added areas who were appointed by the County Council by either of the Urban Councils or by any Parish Council shall vacate office at the commencement of this Order.

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Order.

Mortgage
debts in
respect of
transferred
schools.

Education
byelaws.

Managers

[Ch. cxxvi.] *Ministry of Health Provisional [10 & 11 Geo. 5.]
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A.D. 1920.

*Chesterfield
Order.*

Differential
rating.

Art. XXIX.—(1) During a period of ten years from the commencement of this Order the total amount in the pound of the general district rates to be levied in any one year by the Corporation shall—

(a) in respect of any rateable hereditament in the added part of Whittington and Newbold be less by one shilling; and

(b) in respect of any rateable hereditament in the added part of Hasland be less by two shillings; and

(c) in respect of any rateable hereditament in the area of the existing township of Tupton and in the added part of Brimington be less by three shillings

than the total amount in the pound of the general district rates levied by the Corporation in the same year in respect of any rateable hereditament situate within the area of the existing Borough.

(2) The total amount in the pound of the general district rates to be levied in any one year by the Corporation in respect of any rateable hereditament in the added parts of Brampton and Walton shall not—

(a) during a period of five years from the commencement of this Order exceed three shillings and sixpence; and

(b) during a period of five years from the ninth day of November One thousand nine hundred and twenty-five exceed four shillings

in each pound of the assessable value of the hereditament for the purposes of a general district rate.

Corporation
to be Burial
Board for
Borough.

Art. XXX.—(1) The Corporation shall be the Burial Board for the Borough and shall have within the Borough to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts Provided that no approval sanction or authorisation of the vestry of the Township of Chesterfield shall be required in respect of any act of the Corporation as the Burial Board as aforesaid.

Abolition of
Joint Burial
Area.

(2) All property and liabilities of the Joint Burial Area shall by virtue of this Order vest in and be transferred and attach to the Corporation as the Burial Board for the Borough and the Joint Burial Committee shall be abolished and cease to exist.

Saving rights
of burial.

(3) In relation to any burial ground provided for the Joint Burial Area—

Nothing in this Order shall prejudice or affect any such right of burial or of constructing a place of burial or of erecting and placing any monument gravestone tablet or monumental inscription as a parishioner an inhabitant or any other person has had or acquired before the commencement of this Order; and

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Nothing in this Order shall prejudicially affect any right privilege authority or duty which immediately before the commencement of this Order will be exerciseable by or attach to any incumbent or sexton under the Burial Acts.

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Order.

(4) The Rural Council shall continue to permit the inhabitants of the added part of Hasland to be buried in the cemetery provided for the contributory place of Hasland as if this Order had not been made and at the same charges as are made in respect of interments of persons resident in the remainder of that contributory place.

(5) Subject to the provisions of the Burial Act 1900 all fees payments and sums fixed and settled and receivable by the Joint Burial Committee immediately prior to the commencement of this Order shall thenceforth be receivable by the Corporation acting as a Burial Board until or except in so far as any such fees payments or sums may be altered or varied in pursuance of the statutory provisions in that behalf.

Burial fees
&c.

Art. XXXI.—(1) At the commencement of this Order such number of the members of the police force of the County as shall be determined by agreement to be made as soon as practicable after the date of the Act of Parliament confirming this Order between the Standing Joint Committee of the County and the Watch Committee of the existing Borough or in default of any such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the Borough. Provided that no member of the police force of the County shall be transferred to or become a member of the police force of the Borough under this subdivision unless such member consents to be so transferred.

County
police.

(2) Every member of the county police force so transferred shall hold office in the police force of the Borough upon the same tenure and upon the same terms and conditions as he would have held office in the county police force if this Order had not been made and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he may be entitled shall not be less than they would have been if this Order had not been made.

(3) The provisions of Section 15 (2) of the Police Act 1890 as amended by any subsequent Act shall extend and apply to and in relation to any member of the police force transferred under the powers of this Article as if that member had removed with the written sanction of the Chief Constable of the County.

53 & 54 Vict.
c. 45.

(4) All the county police stations situate in any part of the added areas with the residences for constables and cells connected therewith and the fittings and furniture thereof respectively shall by virtue of

County police
stations.

[Ch. cxxvi.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
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this Order be transferred to and vest in the Corporation as from the commencement of this Order for all the estate and interest therein of the County Council and there shall be paid by the Corporation to the County Council out of the borough fund in consideration of such transfer such sums as shall be agreed upon or as in default of agreement shall be settled by arbitration in manner provided by the Act of 1888.

(5) In the event of the amount of the consideration for the transfer of the property which by virtue of subdivision (4) of this Article is transferred to and vested in the Corporation not being ascertained before the commencement of this Order the date of the final ascertainment of the consideration shall for the purposes of Section 12 of the Finance Act 1895 be treated as the date of vesting.

58 & 59 Vict.
c. 16.

Electoral
Divisions
and County
Councillors.

Art. XXXII.—(1) Subject to the provisions of Section 54 of the Act of 1888—

(a) The number of County Councillors for the County shall continue to be sixty-five of which number six shall be apportioned to the Borough and fifty-three shall be apportioned to so much of the County as is not included in the Borough and in the Boroughs of Glossop and Ilkeston and the said Order dated the Fourteenth day of August One thousand eight hundred and eighty-eight as altered as aforesaid shall be deemed to be further altered accordingly:

(b) The four electoral divisions into which the existing Borough is divided the existing Whittington Electoral Division and the existing Newbold Dunston and Barlow Electoral Division shall be abolished the added parts of Brampton and Walton and the added part of Hasland shall cease to form part of the Brampton Walton and Hasland Electoral Division and the Parish of Barlow and the excluded part of Whittington and Newbold shall be included in that Division which shall be renamed the Brampton Walton Hasland and Barlow Electoral Division and the Township of Tapton and the added part of Brimington shall cease to form part of the Brimington Electoral Division of the County:

(c) The area comprised in the Borough shall form six new electoral divisions of the County to be termed respectively the Chesterfield No. 1 Electoral Division the Chesterfield No. 2 Electoral Division the Chesterfield No. 3 Electoral Division the Chesterfield No. 4 Electoral Division the Chesterfield No. 5 Electoral Division and the Chesterfield No. 6 Electoral Division:

(d) The Chesterfield No. 1 Electoral Division shall comprise the area included in the New Whittington and Old Whittington

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxxvi.]
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Wards constituted by this Order the Chesterfield No. 2 Electoral Division shall comprise the area included in the Newbold and the Moor Wards constituted by this Order the Chesterfield No. 3 Electoral Division shall comprise the area included in the Trinity and Saint Helen's Wards constituted by this Order the Chesterfield No. 4 Electoral Division shall comprise the area included in the Saint Leonard's and Central Wards constituted by this Order the Chesterfield No. 5 Electoral Division shall comprise the area included in the Holme Brook and West Wards constituted by this Order and the Chesterfield No. 6 Electoral Division shall comprise the area included in the Hasland and Rother Wards constituted by this Order.

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Order.

(2) The persons who immediately before the commencement of this Order are the County Councillors representing the Brimington Electoral Division and the Brampton Walton and Hasland Electoral Division of the County shall continue to represent respectively the Brimington Electoral Division and the Brampton Walton Hasland and Barlow Electoral Division of the County as if they had been originally elected to represent those divisions as hereby altered.

(3) The persons who immediately before the commencement of this Order are the persons respectively representing the existing Whittington the existing Newbold Dunston and Barlow the existing Chesterfield No. 1 the existing Chesterfield No. 4 the existing Chesterfield No. 3 and the existing Chesterfield No. 2 Electoral Divisions of the County shall from and after the commencement of this Order represent respectively the Chesterfield No. 1 the Chesterfield No. 2 the Chesterfield No. 3 the Chesterfield No. 4 the Chesterfield No. 5 and the Chesterfield No. 6 Electoral Divisions of the County as hereby constituted as if they had been originally elected to represent the last named divisions.

Art. XXXIII.—(1) The added part of Brimington the added part of Hasland and the parts of the existing Parish of Brampton and of the existing Township of Walton which are included in the added parts of Brampton and Walton shall be separated from the existing parish or township to which they respectively belong and together with the part of the existing Township of Newbold and Dunston which is included in the added part of Whittington and Newbold the existing Parish of Whittington and the existing Township of Tapton shall be amalgamated with the existing Township of Chesterfield.

Parochial
alterations.

(2) The part of the existing Township of Newbold and Dunston which now comprises the excluded part of Whittington and Newbold shall be amalgamated with the existing Parish of Brampton as altered by subdivision (1) of this Article.

[Ch. cxxvi.] *Ministry of Health Provisional [10 & 11 Geo. 5.]*
Order Confirmation (Chesterfield Extension) Act, 1920.

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Order.

Rural Dis-
 trict Coun-
 cillors and
 Guardians.

Art. XXXIV. Subject to the provisions of Section 60 of the Act of 1894 the following provisions shall have effect:—

- (1) The number of Guardians for the Township of Chesterfield shall be increased from eight to twelve:
- (2) The Township of Chesterfield shall for the purposes of the election of Guardians be divided into twelve wards which shall be respectively co-terminous in area with and shall bear the same name as the wards into which the Borough is divided for the purposes of the election of Councillors:
- (3) One Guardian shall be assigned to each of the said wards:
- (4)—(a) The Board of Guardians of the Chesterfield Union shall at their meeting held next before the commencement of this Order choose from among the five persons who are holding the office of Guardian of the Poor for the existing Parish of Whittington and the existing Township of Newbold and Dunston one person who shall go out of office on that date and the other four persons holding the said office for the said Parish and Township shall together with the eight persons who are holding the office of Guardian of the Poor for the existing Township of Chesterfield be allocated by the Board of Guardians at the said meeting to the wards of the Township of Chesterfield as follows that is to say one Guardian for each of the said wards and the persons so allocated shall be deemed to have been elected for those wards respectively and shall continue in office until the date on which they would have retired if this Order had not been made;
- (b) The persons who at the said date are holding the office of Guardian of the Poor for the existing Parish of Brampton and the existing Township of Walton and the offices of Rural District Councillor and Guardian of the Poor for each of the existing Townships of Brimington and Hasland shall be deemed to have been elected for and shall represent the parish or township as altered by this Order until the date on which they would have retired if this Order had not been made;
- (c) The person who at the said date is holding the offices of Rural District Councillor and Guardian of the Poor for the existing Township of Taptôn shall go out of office on that date.

Parish Coun-
 cils and
 Parish
 Meeting.

Art. XXXV.—(1) Any powers and duties transferred by or under the Act of 1894 to the Parish Council of the existing Township of Brimington or of the existing Township of Hasland or to the Parish

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Meeting of the existing Township of Tapton shall so far as regards the added part of Brimington or the added part of Hasland or the existing Township of Tapton be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added part of Brimington or the added part of Hasland or the existing Township of Tapton as the case may be had been included in a parish in the existing Borough on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the added part of Brimington or the added part of Hasland or the existing Township of Tapton for the purpose or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest in and attach to the persons and authorities aforesaid. Any property or liabilities of the said Parish Councils or Parish Meeting held or incurred otherwise than by virtue or for the purposes of the powers or duties aforesaid shall so far as regards the added part of Brimington or the added part of Hasland or the existing Township of Tapton by virtue of this Order be transferred to and vest in and attach to the Corporation.

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Chesterfield
Order.

(2) The Parish Councils of the existing Townships of Brimington and Hasland shall in each case be deemed to have been elected and shall be the Parish Council for the Township of Brimington or the Township of Hasland as the case may be.

Art. XXXVI. Until new valuation lists are in force---

Valuation
lists.

(1) The valuation lists of the existing Parish of Whittington and of the existing Township of Tapton and the portions of the valuation lists of the existing Parish of Brampton and of the existing Townships of Brimington Hasland Newbold and Dunston and Walton which relate to hereditaments in the added areas shall be deemed to form part of the valuation list of the Township of Chesterfield:

(2) The remaining portions of the valuation lists of the existing Parish of Brampton and of the existing Township of Newbold and Dunston shall be deemed to be the valuation list of the Parish of Brampton and the remaining portions of the valuation lists of the existing Townships of Brimington Hasland and Walton shall respectively be deemed to be the valuation list of the Townships of Brimington Hasland and Walton.

Art. XXXVII.—(1) Subject to any future revision the basis or standard of the county rate for the county shall be deemed to be altered—

County rate
basis.

(a) by the omission therefrom of the references to the total annual value of the property in the existing Parish of Whittington

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Order.*

and the existing Townships of Newbold and Dunston and Tupton;

(b) by the deduction from the amount appearing therein as the total annual value of the property in the existing Parish of Brampton of such a sum as will represent the annual value of the property in the part of the existing parish which is included by this Order in the Township of Chesterfield and by the addition of such a sum as will represent the annual value of the property in the part of the existing Township of Newbold and Dunston which is included by this Order in the Parish of Brampton;

(c) by the deduction from the amount appearing therein as the total annual value of the property in the existing Townships of Brimington Hasland and Walton of such a sum in each case as will represent the annual value of the property in the part of the existing township which is included by this Order in the Township of Chesterfield and by the addition of the total of those sums together with the total of the sums which will represent in each case the annual value of the property in the existing Parish of Whittington the existing Township of Tupton and the parts of the existing Parish of Brampton and of the existing Township of Newbold and Dunston which are included by this Order in the Township of Chesterfield to the amount appearing therein as the total annual value of the property in the existing Township of Chesterfield.

(2) For the purposes of this Article the annual value of the property in the part of a parish or township which is included by this Order in another parish or township shall be the amount which bears the same relation to the total annual value of the existing parish or township as the assessable value of the property in the included part of the existing parish or township bears to the total assessable value of property in the existing parish or township.

(3) For the purposes of this Article assessable value means one-half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to that list of the buildings and other hereditaments not being agricultural land in the existing parish or township or in the part included in another parish or township as the case may require.

*Saving for
existing
jury lists.*

Art. XXXVIII.—For the purposes of the jury lists the parishes and townships affected by this Order shall be deemed to continue unaltered until the next lists after the commencement of this Order come into force.

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxxvi.]
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Art. XXXIX. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect that is to say:—

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Order.*

Settlement
and removal
of the poor.

(1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in either of the existing Parishes of Brampton and Whittington or in any of the existing Townships of Brimington Chesterfield Hasland Newbold and Dunston Tapton and Walton by reason of any residence completed or in the course of completion or of any act or thing done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation—

- (i) in the existing Township of Chesterfield; or
- (ii) in the existing Township of Tapton; or
- (iii) in the existing Parish of Whittington; or
- (iv) in the added part of Brimington; or
- (v) in the added part of Hasland; or
- (vi) in that part of the existing Township of Newbold and Dunston which is included in the added part of Whittington and Newbold; or
- (vii) in either of the parts of the existing Parish of Brampton which is included in the added parts of Brampton and Walton; or
- (viii) in either of the parts of the existing Township of Walton which is included in the added parts of Brampton and Walton; or
- (ix) in that part of the existing Township of Brimington which by virtue of this Order will form the Township of Brimington; or
- (x) in that part of the existing Township of Hasland which by virtue of this Order will form the Township of Hasland; or
- (xi) in that part of the existing Township of Newbold and Dunston which is included in the excluded part of Whittington and Newbold; or
- (xii) in that part of the existing Parish of Brampton which by virtue of this Order will be included in the Parish of Brampton; or
- (xiii) in that part of the existing Township of Walton which by virtue of this Order will form the Township of Walton

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Order.*

shall be deemed to have acquired or to be in the course of acquiring in the first second third fourth fifth sixth seventh and eighth cases a settlement in the Township of Chesterfield in the ninth case a settlement in the Township of Brimington in the tenth case a settlement in the Township of Hasland in the eleventh and twelfth cases a settlement in the Parish of Brampton and in the thirteenth case a settlement in the Township of Walton and in each case as if the existing parish or township or the specified part of the existing parish or township were and had always been the parish or township or a part of the parish or township in which by virtue of this Article the person shall be deemed to have acquired or to be in the course of acquiring a settlement :

- (2) Every person who at the commencement of this Order has acquired or is in the course of acquiring a status of irremovability from the Chesterfield Union by reason of residence in any of the areas mentioned in paragraphs (i) to (xiii) of subdivision (1) of this Article shall be deemed to have acquired or to be in course of acquiring the like status by reason of residence in the township or parish in which by virtue of subdivision (1) of this Article he is to be deemed to have acquired or to be in the course of acquiring a settlement.

Saving for
contribution
orders and
precepts.

Art. XL. Notwithstanding the alteration in the areas of the parishes and townships effected by this Order all contribution orders made by the Guardians of the Poor of the Chesterfield Union and all precepts made by the County Council, or by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

Arrears of
rates.

Art. XLI. All arrears of rates made by the Overseers of the Poor and due or owing at the commencement of this Order in respect of hereditaments in the added areas or in the excluded part of Whittington and Newbold shall be collected and recovered in the case of the area of the existing Parish of Whittington and the existing Townships of Tapton and Newbold and Dunston by the Overseers of the Poor of the Township of Chesterfield and in all other cases by the Overseers of the Poor of the parish or township in which the hereditament is now situated as if this Order had not been made.

Audit of
accounts of
Whittington
and Newbold
Council &c.

Art. XLII. The accounts of the Whittington and Newbold Council the Gas and Water Board the Joint Burial Committee and the Parish Meeting of the existing Township of Tapton and of their committees and officers shall be made up to the commencement of this Order and

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxxvi.]
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shall be audited by the District Auditor in like manner and subject to the like incidents and consequences as if this Order had not been made:

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Provided that the audit may in each case be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the District Auditor to be due from any person shall be paid to the treasurer of the Borough and shall if necessary be a matter for adjustment under Section 62 of the Act of 1888.

Art. XLIII.—(1) Any balances standing in the books of the Guardians of the Poor of the Chesterfield Union to the credit of the existing Parish of Whittington and the existing Township of Tapton shall be carried to the credit of the Township of Chesterfield and any balances owing by the existing Parish of Whittington or the existing Township of Tapton shall be deemed to be owing by the Township of Chesterfield.

Balances in
Guardians'
accounts.

(2) Any balance standing in the books of the Guardians of the Poor of the Chesterfield Union to the credit of the existing Township of Newbold and Dunston and any balance owing by that existing township shall be a matter for adjustment under Section 62 of the Act of 1888.

Art. XLIV.—(1) For the purposes of the register of local government electors of the Borough prepared next after the commencement of this Order in pursuance of the Representation of the People Act 1918 and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have formed part of the Borough as from the first day of the qualifying period for that register.

Registration
of electors.

(2) In the preparation of the autumn register for the year one thousand nine hundred and twenty in pursuance of the Representation of the People Act 1918 so far as it relates to areas affected by this Order it shall be competent to the registration officer to frame the register in separate parts for each area which will constitute a registration unit from and after the commencement of this Order instead of in separate parts for each area constituting a registration unit before the commencement of this Order.

(3) If the register of local government electors for any local government electoral area affected by this Order and in force at the commencement of this Order is not so framed as to show the persons entitled to vote at an election to be held for any parish ward or other electoral division of the area the town clerk in the case of an election for a parish ward or electoral division within the Borough and the registration officer of the parliamentary county in the case of an election for a parish ward or electoral division outside the Borough.

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A.D. 1920. shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election. It shall be the duty of the Overseers to render such assistance as may be required by the said town clerk or registration officer for the purpose of such alteration or re-arrangement.

Chesterfield Order.

(4) Where in the opinion of the Minister the circumstances so require the Minister may make such order as appears to him to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

Borrowing powers for purposes of Order.

Art. XLV. For the purpose of defraying any expenses under this Order which in the opinion of the Minister are properly chargeable to capital the Corporation may borrow according and subject to the provisions and restrictions of the Public Health Act 1875 and may mortgage the borough fund and borough rate or the district fund and general district rate of the Borough for the purpose of securing the repayment of any moneys so borrowed and the interest thereon. Provided that all such moneys shall be repaid within such period not exceeding thirty years from the date of borrowing the same as the Corporation with the sanction of the Minister determine.

Ecclesiastical divisions and charities.

Art. XLVI. Nothing in this Order shall affect the ecclesiastical divisions of any parish or township or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

Short title.

Art. XLVII. This Order may be cited as the Chesterfield (Extension) Order 1920.

The SCHEDULES above referred to.

THE FIRST SCHEDULE.

PART I.—CHESTERFIELD LOCAL ACTS.

Session and Chapter.	Short Title.
17 & 18 Vict. c. cxiv.	The Chesterfield Market Act 1854.
36 Vict. c. xvii.	The Chesterfield Corporation Markets Act 1873.
1 Edw. 7. c. cx.	The Chesterfield Improvement Act 1901.
4 Edw. 7. c. xxxvii.	The Chesterfield Corporation Tramways and Improvements Act 1904.
3 & 4 Geo. 5. c. xxxv.	The Chesterfield Corporation Railless Traction Act 1913.
4 & 5 Geo. 5. c. xvi.	The Chesterfield Corporation Act 1914.

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxxvi.]
Order Confirmation (Chesterfield Extension) Act, 1920.

PART II.—CHESTERFIELD CONFIRMATION ACTS.

A.D. 1920.

Session and Chapter.	Short Title.	Order thereby confirmed.	<i>Chesterfield Order.</i>
55 & 56 Vict. c. ccxxiv.	The Local Government Board's Provisional Order Confirmation (No. 14) Act 1892.	The Borough of Chesterfield Order 1892.	
10 Edw. 7. & 1 Geo. 5. c. lxxxiii.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1910.	The Chesterfield (Extension) Order 1910.	

THE SECOND SCHEDULE.

PART I.—GAS AND WATER BOARD LOCAL ACTS.

Session and Chapter.	Short Title.
18 Vict. c. xxix.	The Chesterfield Waterworks and Gaslight Company's Act 1855.
28 Vict. c. xxxvi.	The Chesterfield Waterworks and Gaslight Company's Extension Act 1865.
34 & 35 Vict. c. cxviii.	The Chesterfield Waterworks and Gaslight Company's Act 1871.
39 & 40 Vict. c. xlix.	The Chesterfield Waterworks and Gaslight Company's Act 1876.
58 & 59 Vict. c. cxlvii.	The Chesterfield Gas and Water Board Act 1895.
4 Edw. 7. c. xlv.	The Chesterfield Gas and Water Board Act 1904.
1 & 2 Geo. 5. c. xl.	The Chesterfield Gas and Water Board Act 1911.

PART II.—GAS AND WATER BOARD CONFIRMATION ACT.

Session and Chapter.	Short Title.	Order thereby confirmed.
63 & 64 Vict. c. liv.	The Local Government Board's Provisional Orders Confirmation (No. 3) Act 1900.	The Chesterfield (Gas and Water Board) Order 1900.

Given under the Official Seal of the Minister of Health this
Fourth day of May One thousand nine hundred and twenty.
(L.S.) F. J. WILLIS

Assistant Secretary Ministry of Health.

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1. The first part of the document is a list of names and addresses of the members of the committee. The names are written in a cursive hand, and the addresses are given in a more formal, printed style. The list is organized in a table-like format with columns for names and addresses.

2. The second part of the document is a detailed report of the committee's activities. It begins with a statement of the committee's purpose and then proceeds to a chronological account of the work done. The report is written in a clear, concise style, and it includes many specific details about the committee's work. The text is organized into paragraphs, and it is easy to follow the flow of the report.

3. The third part of the document is a list of recommendations. The committee has made several suggestions for improving the work of the organization, and these are listed in a clear, numbered format. The recommendations are based on the committee's findings and are designed to be practical and actionable. The list is organized in a way that makes it easy to see the different areas of improvement.

4. The final part of the document is a conclusion. The committee expresses its confidence in the organization and its belief that the recommendations will be helpful in improving its work. The conclusion is written in a positive and encouraging tone, and it ends with a statement of the committee's hope for the future.